

Amendment No. 2 to HB2114

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2450

House Bill No. 2114*

by deleting all language after the enacting clause and substituting:

SECTION 1. The Tennessee advisory commission on intergovernmental relations (TACIR) shall conduct a study to determine if newspapers of general circulation remain the most efficient and effective manner for governments to provide the public with transparent and accessible information. TACIR shall also examine how the efficiency of public notice methods has changed historically as part of the study.

SECTION 2. TACIR shall further study how the public has historically obtained its news and information compared to today. This comparison must include how the number of newspapers has changed in Tennessee, how their publication frequency has changed, and whether the number of subscribers as a percentage of the population has changed historically.

SECTION 3. TACIR shall examine the ability of governmental entities to create public notice systems, including their ability to maintain permanent public archives, protect against data corruption, and ensure independent verification of publication. This examination must also include the review of the costs associated with governmental entities maintaining online public notice platforms.

SECTION 4. TACIR shall review all governmental and public entities to determine the amount of taxpayer money used to meet newspaper publication requirements in this state. The study shall also examine whether citizens should be required to pay a subscription fee to access information that is intended to provide notice and transparency of governmental actions.

SECTION 5. TACIR shall study how the availability of broadband access in states, especially in rural communities, affects the publication of online public notices.

SECTION 6. TACIR shall review public notice practices in other states and any available trends or advances in technology. The review must include whether any new practices have affected transparency, government accountability, the impact on rural communities, or civic participation in those states.

SECTION 7. TACIR shall consult with interested parties regarding all issues cited in this study. The interested parties include, but are not limited to, local governments, newspaper publishers, the Tennessee Press Association, representatives from rural communities, governmental entities in other states that use online public notice, and open government advocates.

SECTION 8. TACIR may request information and input from state and local governmental entities, as necessary, and such entities must comply with TACIR's request. The study must be conducted from TACIR's existing resources.

SECTION 9. Upon completion of the study, TACIR shall report its findings and recommendations, including any proposed legislation, to the chair of the state and local government committee of the senate and the chair of the committee of the house of representatives having jurisdiction over subject matters pertaining to state and local government, and provide a copy of the report to the legislative librarian. The report may be delivered electronically.

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.